

Court No. - 40

Case :- WRIT - C No. - 13330 of 2018

Petitioner :- Karan Singh

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Tarun Kumar Tripathi

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi,Pankaj
Srivastava

Hon'ble Amreshwar Pratap Sahi,J.

Hon'ble Shashi Kant,J.

Heard learned counsel for the petitioner.

The petitioner was proceeded against by the respondent-Electricity Department in terms of Section 135 of the Electricity Act, 2003. For that, the petitioner has the remedy to seek compounding in terms of Section 152 of the said Act.

The recovery citation has also been issued upon some assessment having been made. Learned counsel for the petitioner submits that the petitioner may be allowed to avail the remedy of making the payment in some installments.

For this, the petitioner will have to approach the Executive Engineer in terms of Clause-6.14 of the Electricity Supply Code, 2005. In the event, the petitioner approaches the Executive Engineer along with the certified copy of this order, he shall proceed to consider the same in accordance with law and pass an appropriate order within three weeks thereof. The recovery proceedings shall abide by any such orders.

Disposed of with the said observations.

Order Date :- 12.4.2018

S.Chaurasia